

File No.: EXP202314974

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on September 11, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On September 11, 2023, a complaint was received by this Agency from Mr. A.A.A. (hereinafter, the complainant) against PLK CHICKEN IBERIA, S.L. (hereinafter, the respondent) for not having duly attended to his right of access.

The complainant, after receiving a promotional email from the respondent, contacted them on July 10, 2023, requesting his right of access, "(...) including the source of the data and the legal basis for the processing," as well as the deletion of the data, receiving a response on August 3, 2023, stating that "(...) you have received this communication because you accepted it when registering with one of the companies in the group. There is no other way to be part of the marketing database. At the bottom of the same communication you attached is the link to unsubscribe. The data we have about you is the email to which you received the communication. (...) I inform you that your email has been canceled from this database (...)"

Dissatisfied with the response, the complainant reiterated his request on August 3, 2023, which was answered on August 7, 2023, by the respondent indicating that they only have his email, to which the communication was sent, and that his data has been deleted.

The complainant has provided copies of the various emails and responses.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The respondent states, in summary, and as far as this procedure is concerned, that they received the requests from the complainant exercising his right of access and claims to have responded correctly. They indicate that their responses have been included in the complaint itself.

The respondent provides several screenshots of the registration process, which bear the trademark symbol of Burger King, to substantiate the communication of data between companies of the same group. They state that when creating the account, the terms and conditions of use and the privacy policy inform about the transfer of data to the companies that make up the RB Iberia business group and specify which ones are included (among others, Burger King and PLK Chicken). Therefore, when creating an account with Burger King and accepting the privacy policy, the complainant's data has been communicated to PLK Chicken, which has led to the receipt of commercial communications from the respondent.

In their responses to the complainant, they inform him that they have deleted his data and that they processed his data because he created a user account with one of the entities of the business group. They indicate that they only processed his email address and name, which they have already deleted from their database.

THIRD: The result of the transfer procedure indicated in the previous Fact did not satisfy the complainant's claims, as the access provided by the respondent is incomplete since they did not respond to the complainant by providing all the requested information, as stipulated in Article 15, paragraph 1, letters a) to h), and paragraph 2 of the GDPR. Specifically, they do not clarify the source of the data nor do they respond to the legal basis that legitimizes the processing. They inform that "you have received the communication because you accepted it when registering with one of the companies in the group," in a generic manner but without specifying the company in question. They also do not specify which data pertains to the complainant, only referring generically to the type of data (email address and name).

Consequently, on December 11, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the

Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. The aforementioned agreement granted the respondent a hearing period, to present any allegations they deemed appropriate within ten working days.

The respondent indicated that, once they received the complainant's request, which included access and deletion, on August 3, 2023, after making the necessary inquiries, they responded through the same channel stating that "(...) you have received this communication because you accepted it when registering with one of the companies in the group. There is no other way to be part of the marketing database. At the bottom of the same communication you attached is the link to unsubscribe. The data we have about you is the email to which you received the communication. I have checked the functionality of the link and it works. I inform you that your email has been canceled from this database."

The respondent continues to indicate that, after receiving the request from this Agency, they have sent another communication to the complainant "(...) in which...

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The company in which the registration was made and the acceptance of receiving communications was indicated as Burger King."

"The text of the communication is:

"Following the request for information from the AEPD, I inform you again that, as communicated to you on August 3, 2023, via this same channel, regarding the right of cancellation, it was carried out as of the date of your request, and regarding the right of access, we indicate the origin of your data, which was none other than accepting in your subscription one of the companies of the group (in this case, I inform you that it was Burger King) to receive communications from the other brands of the group. You were also informed of the data that Popeyes had about you, which were your email, first name, and last name to address you. Therefore, we consider both requests to be answered as of August 3, 2023. (...)"

The responding party states that "(...) There were no more data, only email and name. The responding party has never obtained or processed more data than those."

FOURTH: After examining the document submitted by the responding party, it is forwarded to the claimant, so that, within ten working days, they may formulate any allegations they deem appropriate. The claimant has provided the email sent to the responding party in response to the allegations presented by the latter before the AEPD, in which, in summary, and as far as this procedure is concerned, they state that "1. I never give my consent for the communication of data to other companies for commercial purposes and, unless proven otherwise, I did not do so when I registered with Burger King. (...)

3. I registered with Burger King in 2015, several years before Popeyes arrived in Spain. Therefore, it is not possible, even for informational purposes, that I was informed of the communication of data to Popeyes identifying this company (PLK Chicken Iberia) at the time of my registration. At most, Burger King's privacy policy would mention companies of the group (to which Popeyes did not yet belong) and it would have to be seen if even the sector of activity was mentioned. Burger King also did not inform me or request my consent to communicate my data to Popeyes after this company arrived in Spain. In fact, the first notice I had that Popeyes was processing my data was when I received their commercial communication. In short, as that information did not exist at the initial moment nor was it provided later, the communication of data is unlawful due to the lack of identification of the data controller. (...)"

FIFTH: The responding party, having been granted a hearing, states that "I attach screenshots that confirm that, yes, the communications from the RBI group were accepted, indicating the date and time at which they were accepted. In the expanded layer to which the basic information leads, it is mentioned that by accepting it, the data will be transferred to the group companies, and these are detailed.

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I provide evidence that the complainant did register for the receipt of commercial communications. I send a screenshot in which you can see the day and even the hour when they accepted receiving commercial communications. Likewise, I attach screenshots of the opt-in registration and of the basic layer with a link to the expanded one that I also attach. It is impossible to be part of that database if the opt-in is not accepted.

(...) However, I provide evidence that yes, they did give consent, what happens is that from July 6, 2022, when they accepted the communications until they received the first communication from Popeyes in July 2023, (...)"

The responding party provides a message received from the claimant, which, in summary, and as far as the procedure is concerned, states that they did not consent on the date indicated by the responding party (July 6, 2022).

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among data controllers and processors regarding their obligations, as well as to address complaints submitted by a data subject and investigate, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure provided for in Article 65.4 of the LOPDGDD, prior to the admission of the complaint from

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The exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, was communicated to the party being complained against so that they could analyze it, respond to this Agency within a month, and provide proof of having given the complainant the appropriate response.

The result of this communication did not satisfy the claims of the complainant. Consequently, on December 11, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to attend to a request for the exercise of the rights established in Articles

15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the failure to attend to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the agreement of admission to processing was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to address any infringement of the GDPR, including “ordering the data controller or processor to attend to the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account.

In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and must state their reasons if they do not intend to attend to such a request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, according to Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the “data or processing activities to which the request refers.” The right will be considered granted if the data controller provides remote access to the data, being deemed that the request has been attended to (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them and being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if not obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or an international organization. The possibility of obtaining a copy of the personal

data being processed shall not adversely affect the rights and freedoms of others.

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V

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in the data protection regulations. Therefore, in the present case, only the facts related to the exercise of these rights will be analyzed and evaluated, excluding the rest of the issues raised by the parties. In this case, and taking into account the provisions of the first paragraph of this Legal Basis, it has been established that the claimant requested access to their data and the subsequent deletion of the same from the respondent, and that the complaint submitted to this Agency is solely for not having been duly attended to regarding their right of access.

The Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, regarding the rights of data subjects - right of access, state that

“3. Under the GDPR, the right of access consists of three components, namely, the confirmation of whether or not personal data is being processed, access to the data, and information about the processing itself. The data subject may also obtain a copy of the personal data being processed, while this possibility is not an additional right of the data subject, but rather the modality of providing access to the data. Therefore, the right of access can be understood both as the possibility for the data subject to ask the data controller whether personal data concerning them is being processed, and as the possibility to access and verify this data. The data controller shall provide the data subject, based on their request, with the information included within the scope of Article 15, paragraphs 1 and 2, of the GDPR.

(...)

16.1.1.

Definition of the content of the right of access

17. Article 15, paragraphs 1 and 2, contains the following three aspects: first, the confirmation of whether the personal data of the requesting person is being processed; if so, second, access to that data; and third, information about the processing. These can be considered as three different components that together construct the right of access.

17.1.1.1. Confirmation of whether or not personal data is being processed

18. When making a request for access to personal data, the first thing that data subjects must know is whether the data controller is processing the data concerning them. Consequently, this information constitutes the first component of the right of access under Article 15, paragraph 1. When the data controller does not process data

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personal related to the data subject requesting access, the information provided would be limited to confirming that no personal data related to the data subject is being processed. When the data controller processes data related to the requesting individual, the data controller must confirm this fact to that individual. This confirmation may be communicated separately, or it may be included as part of the information regarding the personal data being processed (see below).

2.2.1.2 Access to personal data subject to processing

19. Access to personal data is the second component of the right of access under Article 15, paragraph 1, and constitutes the core of this right. It refers to the notion of personal data as defined in Article 4, paragraph 1, of the GDPR. Apart from basic personal data, such as name and address, an

unlimited variety of data may be included in this definition, as long as it falls within the material scope of the GDPR, especially regarding how it is processed (Article 2 of the GDPR). Access to personal data means access to the actual personal data, not just a general description of the data or a mere reference to the categories of personal data processed by the data controller. If no limits or restrictions apply, data subjects have the right to access all data processed in relation to them, or parts of the data, depending on the scope of the request (see sec. 2.3.1). The obligation to provide access to the data does not depend on the type or source of such data. It applies in full even in cases where the requesting individual initially provided the data to the data controller, as its purpose is to inform the data subject about the actual processing of such data by the data controller. The scope of personal data under Article 15 is explained in detail in sec. 4.1 and 4.2.

(...)

2.3 General principles of the right of access

34. When data subjects submit a request for access to their data, in principle, the information referred to in Article 15 of the GDPR must always be provided in full. Consequently, when the data controller processes data related to the data subject, the data controller will provide all the information referred to in Article 15, paragraph 1, and, where applicable, the information referred to in Article 15, paragraph 2. The data controller must take appropriate measures to ensure that the information is complete, accurate, and up to date, as close as possible to the state of data processing at the time of receiving the request. When two or more data controllers process data jointly, the arrangement of the joint controllers regarding their respective responsibilities in relation to the exercise of the rights of the data subject, especially regarding the response to access requests, does not affect the rights of the data subjects against the data controller to whom they direct their request.

2.3.1 Completeness of the information

35. Data subjects have the right to obtain, with the exceptions mentioned below, the complete disclosure of all data relating to them (for more details on the scope, see section 4.2). Unless the data subject expressly requests otherwise, the request to exercise the right of access will be understood in general terms, covering all personal data relating to the data subject. Limiting access to part of the information may be considered in the following cases:

a) The data subject has explicitly limited the request to a subset. To avoid providing incomplete information, the data controller may only consider this limitation of the data subject's request if it can be sure that this interpretation corresponds to the will of the data subject (for more details, see section 3.1.1, para. 51). In principle, the data subject will not have to repeat the request for transmission of all the data that the data subject is entitled to obtain.

b) (...)

42.1.1. Analysis of the content of the request

43. This issue can be evaluated more specifically by asking the following questions.

a) Does the request refer to personal data?

44. Under the GDPR, the scope of the request will only cover personal data. Therefore, any request for information on other matters, including general information about the data controller, its business models, or its processing activities unrelated to personal data, will not be considered a request made in accordance with Article 15 of the GDPR. Furthermore, a request for information about anonymous data or data that does not concern the requesting individual or the person on whose behalf the authorized person made the request will not fall within the scope of the right of access. This question will be analyzed in more detail in section 4.

(...)

e) Do the data subjects wish to access all or part of the information processed about them?

51. Furthermore, the data controller must evaluate whether the requests made by the requesting individuals refer to all or part of the information processed about them. Any limitation of the scope of

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A request for a specific provision of Article 15 of the GDPR, made by the data subjects, must be clear and unequivocal. For example, if the data subjects literally request "information about the data processed concerning them," the data controller must assume that the data subjects intend to fully exercise their right under Article 15, paragraphs 1 to 2, of the GDPR. Such a request should not be interpreted as the data subjects wishing to receive only the categories of personal data being processed and waiving their right to receive the information listed in Article 15, paragraph 1, letters a) to h). This would be different, for example, when the data subjects wish to have access to the source or origin of the specified personal data or the specified retention period. In such cases, the data controller may limit their response to the specific information requested.

From the examination of the documentation provided during this procedure, it has not been established that the respondent has complied with the right of access as set forth in Article 15 of the GDPR and the previously mentioned Guidelines 1/2022.

The respondent also replied to the complainant indicating that "(...) their email has been removed from this database (...)"

In this regard, it should be noted that when exercising the right of access, it cannot be accepted that by deleting personal data, under the regulations, the right of access exercised is left unanswered.

In this respect, it should be noted that personal data subject to the blocking modality means that their processing is not allowed, but it does not imply that the personal data that the controller had and processed while the contractual relationship lasted cannot be made available to the affected party, in case, as happens in the present case, responsibilities arising from its processing could emerge.

According to personal data protection regulations, the deletion of data, as established in Article 32 of the LOPDGDD, must be carried out through blocking; therefore, the deletion of personal data, having ceased to be necessary for the purpose that justified its processing, will not automatically imply its physical deletion. This action is subject to certain conditions aimed at ensuring and guaranteeing the affected party's right to the protection of their personal data.

Blocked data will be available to the Courts, the Public Prosecutor's Office, or other competent public administrations, particularly the personal data protection authorities, for the requirements of possible responsibilities arising from the processing and for the statute of limitations of these.

For all the above reasons, the complainant has exercised the right of access regarding the personal data that concerns them, and the respondent should facilitate the complainant's right of access without negatively affecting the rights and freedoms of other individuals, all in accordance with the terms provided in the GDPR.

Consequently, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint made by Mr. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge PLK CHICKEN IBERIA, S.L. with NIF B88400569, to send the complainant a certification within ten working days following the notification of this resolution, addressing the requested right or denying it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to PLK CHICKEN IBERIA, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision

of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.
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